



File No.: EXP202305620

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) states that the website durcal.net publishes an Official Bulletin of Granada in which his personal data (full name and ID number) are associated with a sanctioning file from the year 2015.

Therefore, he sent an email to Durcal.net requesting the deletion of his data, which was denied, indicating that "The data is in the BOP of Granada, and as previous rulings have stated, the data in the official bulletins of the state or any administration does not have the right to withdrawal. In any case, if the data is removed from the bulletin, we will download the new official version from the administration for storage. (...) In any case, you can contact the relevant administration, request its removal, and we will update the copy stored for historical reasons."

On March 9, 2023, a complaint was received by this Agency against ROBOTSTXT, S.L. (hereinafter, the respondent) for not having duly addressed the right to deletion.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, with no response recorded.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on June 9, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days, they could present the arguments they deemed appropriate, stating, in summary, that the document requested for removal "(...) is a copy downloaded from the BOP of Granada, a public document, which was downloaded and stored as a copy on the website of Durcal.net as a non-official site of the locality of Dúrcal, where, among other information, official documents of the State, Autonomous Communities, and other bodies are stored that contain official information about this population and its town hall." "As it is an official document, we suggest to the claimant that they contact the responsible parties of the BOP of Granada so that, if they remove the information, we can download the document again and replace the official document."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they can formulate the arguments they consider appropriate, stating that

"It is not appropriate to request the removal of the official document from the responsible parties of the BOP of Granada, as they have not published said document in such a way that my personal data can be consulted by anyone. That is to say, in the event that it is published, my information does not appear in internet search engines, as ROBOTSTXT SL acknowledges by stating that the information is not easily found.

All I ask is that my personal data be removed or hidden, not any other information that could be considered of public interest."

FIFTH: The respondent, having been granted a hearing, states that "In relation to the document in question, the editorial team has worked to achieve a reduced version of the BOP document in which the relevant/non-relevant information is limited to the page in question."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures.”

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The outcome of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on June 9, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: “When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;

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f) the personal data has been obtained in relation to the offering of information society services mentioned in Article 8, paragraph 1.

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers who are processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in

paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or

e) for the formulation, exercise, or defense of claims."

V

Lawfulness of Processing

Article 6 of the GDPR, Lawfulness of Processing, states that:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

(...)

4. When processing for a purpose other than that for which the personal data were collected is not based on the consent of the data subject or on Union or Member State law which constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives set out in Article 23, paragraph 1, the data controller, in order to determine whether the processing for another purpose is compatible with the purpose for which the personal data were initially collected, shall take into account, among other things:

- a) any connection between the purposes for which the personal data were collected and the purposes of the intended further processing;
- b) the context in which the personal data were collected, in particular regarding the relationship between the data subjects and the data controller;
- c) the nature of the personal data, in particular when special categories of personal data are processed, in accordance with Article 9, or personal data relating to criminal convictions and offenses, in accordance with Article 10;
- d) the possible consequences for the data subjects of the intended further processing;
- e) the existence of appropriate safeguards, which may include encryption or pseudonymization."

VI

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the complainant requested the deletion of their data published on a website by the respondent, and that the latter denied that deletion because the data had been extracted from an Official Bulletin.

The Legal Report 136/2018 of this Spanish Agency for Data Protection states that

"(...) It must first be stated that the personal data protected by personal data protection regulations are the data of natural persons (Article 1.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC).

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repeals Directive 95/46/EC (General Data Protection Regulation, GDPR), thereby excluding data

relating to legal entities from such protection. Article 6.1 letter f) of the GDPR establishes that processing shall be lawful only if at least one of the following conditions is met, among which it cites legitimate interest, regarding which the present inquiry is concerned. In this regard, it should be noted that the regime of legitimate interest as a basis for legitimizing the processing of personal data is regulated differently in Organic Law 15/1999, of December 13, on the Protection of Personal Data (LOPD) and in the GDPR. In the LOPD, the essential basis for legitimizing processing was the unequivocal consent of the affected party (art. 6.1). However, such consent was not necessary when (among other circumstances) the data appeared in "publicly accessible sources" and its processing was necessary for the satisfaction of the legitimate interest pursued by the data controller or by the third party to whom the data is communicated, provided that "the fundamental rights and freedoms of the data subject are not violated." In the GDPR, for the existence of legitimate interest as a legal basis for processing, it is not required (i) that the data appears in publicly accessible sources, (ii) nor is it established for the legitimacy of this cause that "the fundamental rights and freedoms of the data subject are not violated," but rather a balancing must be carried out to determine the prevalence between the claimed legitimate interest and the "interests, or the fundamental rights and freedoms" of the data subject that require the protection of personal data (art. 6.1 f) GDPR). This highlights the standard that must be followed in determining such prevalence. First, the protection regime of the data subject in the GDPR against the data controller who intends to use their personal data based on a legitimate interest is more intense in the GDPR than in the LOPD, since in the latter, to allow legitimate interest, it was sufficient that their rights or freedoms were not "violated," while in the GDPR regime, it is sufficient that their interests, rights, or freedoms prevail over that legitimate interest. It should be noted that the word interests is added, as opposed to the violation of the rights or freedoms previously necessary in the LOPD. And that no violation is necessary, but rather it is sufficient that their interests, rights, or freedoms are affected, even if slightly, as long as that interest prevails over the claimed legitimate interest.

It seems necessary at this moment to determine the origin of the publication of the personal data of the interested parties in the official industrial property bulletin, and this can only be the establishment of a legal obligation determined by the industrial property regulations so that other interested parties in the granting or, concession, denial, etc. of the industrial property right can oppose, if it suits their rights. This is evident, for example, from Article 18.3 of Law 17/2001, of December 7, on Trademarks, which requires that upon receiving the trademark application, the Spanish Patent and Trademark Office shall proceed to publish it in the official industrial property bulletin, and must necessarily include the name and address of the applicant and the name and address of the representative, if any. Subsequently, Article 19 of the same law establishes that once the trademark application is published, any person who considers themselves harmed may oppose the registration of the same. Ultimately, this is a restriction on the fundamental right to the protection of personal data of the data subject.

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applicant, and where applicable, of the representative, justified by the fact that third parties interested in the trademark may oppose its registration. However, the publication of personal data does not depend on the will of the trademark applicant or the representative, but is imposed by law, which cannot be irrelevant when determining the possibility of further uses of such information.

This determines that, in the specific case submitted for consultation, and without the need to establish at this moment a general theory that could be understood as applicable to other cases of publication in bulletins, since it will be necessary to consider the specific case, the restriction or limitation on the personal data of the interested party is imposed by law for a legitimate purpose. Therefore, this agency considers that in the present case, against the legitimate interest claimed by the consultant to want to use the personal data published in the BOPI to promote their activities as industrial property agents, the interest or fundamental right to the protection of the personal data of the interested party must

prevail, who has not voluntarily made such data public in the BOPI, but whose publication is imposed by law for the purposes established therein, which are to allow interested third parties to oppose the application or registration of the trademark.

In fact, the use of personal data whose publication is mandatory by virtue of the law in the official bulletins of industrial property would be used for a purpose different from that for which the data was initially collected, so to determine whether the processing for that new purpose is compatible, it would be necessary to take into account what is established in Article 6.4 of the GDPR, interpreting in accordance with Recital (47) of the GDPR, which establishes for such purpose the existence of a relevant and appropriate relationship between the interested party and the controller, as in situations where the interested party is a client of the controller.

Well, as has been commented at the beginning, there is no relationship in the present case between the controller and the interested party whose data has been published in the BOPI, so the latter cannot reasonably foresee, at the moment in the context of the collection of personal data, that processing for such purpose may occur, or in other words, as Recital 47 indicates, the interests and fundamental rights of the interested party should prevail over the interests of the data controller when the interested party does not reasonably expect further processing to take place. And in the present case, given, as has been repeatedly expressed, that the processing of personal data consisting of publication in the official bulletins of industrial property is mandatory by law, it is independent of the will or consent of the interested party, which cannot be refused, it can be understood that their rights and freedoms and interests prevail over the legitimate interest of the controller. Consequently, in the present case, there would be no prevailing legitimate interest of the controller over the rights of the interested party that would legitimize the intended processing of personal data.

Regarding the question of whether the BOPI has the character of a source of public access, and as the consultation adequately states, it was already presented in the 10th annual session that with the GDPR, one cannot speak of a legal concept of a source of public access as existed with the previous LOPD. Article 14.1 f) of the GDPR only mentions this concept to establish the obligation of the data controller to provide the interested party with information on whether their personal data...

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proceed from publicly accessible sources, but without defining these. Therefore, to summarize up to this point or the meaning of this report, whether the personal data contained in the BOPI comes from a public access source or not does not change the regime or the basis of legitimacy for the processing of such personal data, which would be as stated up to this point, so that, as mentioned, it is considered that the legitimate interest of the data controller would not prevail in this case over the interest, right, or fundamental freedom to the protection of the personal data of the data subject.

Consequently, there would be no legal basis legitimizing under art. 6.1 f) GDPR for the processing of personal data, so that, consequently, as they cannot be processed, there would be no need to provide any information (precisely because the controller cannot proceed with the processing of the data) as provided in Article 14 GDPR, since the need to provide such information only arises when personal data is processed. (...)

Consequently, the claims of the respondent party regarding the data having been obtained from an Official Bulletin and that it may retain a copy of the same cannot be accepted, since the respondent has not demonstrated the existence of a legal basis that legitimizes the processing of the claimant's data.

The processing consisting of retaining and publishing on the Durcal.net website a copy of the BOP of Granada with the personal data of the claimant requires, for it to be lawful, that it be based on one of the justification grounds set out in Article 6 of the GDPR. However, in this case, as stated, the respondent entity has not justified the existence of any legal basis, which could indicate an unlawful processing of the claimant's personal data. Therefore, it is appropriate to uphold the claim that is the origin of this procedure, by virtue of the provisions of Article 17.1.d) of the GDPR, which imposes on

the data controller the obligation to erase without undue delay personal data when they have been processed unlawfully.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge ROBOTSTXT, S.L. with NIF B10708568, to, within ten working days following the notification of this resolution, send to the claimant a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions set forth in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to ROBOTSTXT, S.L.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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